

Ashhurst, J. declared himself of the same opinion.

Buller, J.—This determination will not interfere with any of the adjudged cases. For it appears to me on these affidavits that this is a trust, and therefore that the remedy is in a Court of Equity. A party applying for a mandamus must make out a legal right; though if he shew such legal right, and there be also a remedy in equity, that is no answer to an application [652] for a mandamus; for when the Court refuse to grant a mandamus because there is another specific remedy, they mean only a specific remedy at law.

Grose, J.—This Court will grant a mandamus, where the party applying has no other specific legal remedy, or if such other remedy be obsolete. But here the party applying has no legal right; or if he have, it may be asserted in another legal mode.

Rule discharged.

*METCALFE against MARKHAM.* Friday, May 14th, 1790. The venue in an action for a libel in a letter written in Yorkshire, and sent by the post into Germany, may be changed from London to Yorkshire on the usual affidavit.

In an action for a libel contained in a letter dated at Hull, [which is a town and county of itself,] written by the defendant to his correspondent at Hamburgh, in Germany, and also for slanderous words, Wood had obtained a rule to change the venue from London into Yorkshire upon the usual affidavit; to set aside which rule Lambe had obtained another rule upon an affidavit that the letter was dated at Hull, and sent by the post; and therefore he contended that, as it had passed through other counties, it might equally be said to have been published in each of those counties, as in Yorkshire. In fact it must be taken to have been published in Germany, where the letter was opened: but either way the defendant could not entitle himself to change the venue, because he could not swear that the cause of action arose in Yorkshire and not elsewhere.

Wood shewed cause upon an affidavit, which set forth that though the letter was dated "Hull," yet in fact it was written at Sculcoats, in Yorkshire, which indeed is usually considered as part of Hull, and so called in common acceptation. He took the distinction between a libel, which is dispersed through several counties, and a letter which is written in one county and not opened in another: in the former the venue cannot be changed; in the latter, it may. As to the publication being in Germany where the letter was opened, that does not vary the case, since the only part of the transaction out of which the cause of action arose, which happened in England, was in Yorkshire.

Per Curiam. The Master has furnished us with two notes in which the distinction is recognized, as mentioned by Mr. Wood, between libels dispersed throughout the kingdom, and those [653] which are only published in one county (*a*). Here the defendant is warranted in his affirmation that the cause of action arose in Yorkshire, and not elsewhere within the kingdom.

Rule discharged.

*COOKE against OXLEY.* Friday, May 14th, 1790. A. having proposed to sell goods to B., gave him a certain time at his request to determine whether he would buy them or not; B. within the time determined to buy them, and gave notice thereof to A.; yet A. was not liable in an action for not delivering them, for B. not being bound by the original contract, there was no consideration to bind A. [16 East, 45.]

[Considered, *Adams v. Lindsell*, 1818, 1 B. & Ald. 682. Referred to, *Dickinson v. Douds*, 1876, 2 Ch. D. 469. Discussed, *Stevenson v. M'Lean*, 1880, 5 Q. B. D. 352. Referred to, *Bristol Aerated Bread Company v. Maggs*, 1890, 44 Ch. D. 625.]

This was an action upon the case; and the third count in the declaration, upon which the verdict was taken, stated that on, &c. a certain discourse was had, &c. concerning the buying of 266 hogsheads of tobacco; and on that discourse the defen-

(*a*) Vide *Pinkney v. Collins*, ante, 1 vol. 571. *Clissold v. Clissold*, ante, 1 vol. 647, and *Freeman v. Norris*, ante, 306.

dant proposed to the plaintiff that the former should sell and deliver to the latter the said 266 hogsheads [at a certain price]; whereupon the plaintiff desired the defendant to give him (the plaintiff) time to agree to or dissent from the proposal till the hour of four in the afternoon of that day, to which the defendant agreed; and thereupon the defendant proposed to the plaintiff to sell and deliver the same upon the terms aforesaid, if the plaintiff would agree to purchase them upon the terms aforesaid, and would give notice thereof to the defendant before the hour of four in the afternoon of that day; the plaintiff averred that he did agree to purchase the same upon the terms aforesaid, and did give notice thereof to the defendant before the hour of four in the afternoon of that day; he also averred that he requested the defendant to deliver to him the said hogsheads, and offered to pay to the defendant the said price for the same, yet that the defendant did not, &c.

A rule having been obtained to shew cause why the judgment should not be arrested, on the ground that there was no consideration for the defendant's promise,

Erskine and Wood now shewed cause. This was a bargain and sale on condition; and though the plaintiff might have rescinded the contract before four o'clock, yet not having done so, the condition was complied with, and both parties were bound by the agreement. The declaration considered this as a complete bargain and sale; for the breach of the agreement is for not delivering the tobacco, and not for not selling it.

Lord Kenyon, Ch.J. (stopping Beareroff, who was to have argued in support of the rule).—Nothing can be clearer than that [654] at the time of entering into this contract the engagement was all on one side; the other party was not bound; it was therefore nudum pactum.

Buller, J.—It is impossible to support this declaration in any point of view. In order to sustain a promise, there must be either a damage to the plaintiff, or an advantage to the defendant; but here was neither when the contract was first made. Then as to the subsequent time, the promise can only be supported on the ground of a new contract made at four o'clock; but there is no pretence for that. It has been argued that this must be taken to be a complete sale from the time when the condition was complied with: but it was not complied with, for it is not stated that the defendant did agree at four o'clock to the terms of the sale; or even that the goods were kept till that time.

Grose, J.—The agreement was not binding on the plaintiff before four o'clock; and it is not stated that the parties came to any subsequent agreement; there is therefore no consideration for the promise.

Rule absolute (a).

DAY *against* HANKS. Friday, May 14th, 1790. If there be two distinct causes of action in two counts, and as to one the defendant suffers judgment to go by default, and as to the other takes issue and obtains a verdict, he is entitled to judgment for his costs on the latter count, notwithstanding the plaintiff is entitled to judgment, and costs, on the 1st count.

In an action on the case for disturbing the plaintiff in his right of common the declaration contained two counts, for disturbances in two distinct commons: as to the first of which the defendant suffered judgment to go by default; and upon the second he took issue, and upon trial obtained a verdict.

In Michaelmas term last the plaintiff obtained a rule nisi for the postea to be delivered to him, and for the Master to tax his costs thereon; against which

Cockell, Serjt. shewed cause; contending that though in general by the Statute of Gloucester [6 Ed. 1, c. 1.] the plaintiff was entitled to the costs of the trial if he succeeded on any count by which he was entitled to damages, notwithstanding he failed on others, yet that rule must be confined to such cases where the plaintiff obtains a verdict on such count, and does not extend to cases where judgment goes by default as to one count containing one cause of action, and the parties afterwards proceeded to trial upon another count, containing a different cause of action, on which a verdict is found for the defendant. It would be very oppressive if it were so; for then the plain-[655]-tiff, though clearly in the wrong with respect to the real ground of dispute, might insure his costs by adding a count, as in this case, for some trivial

(a) This judgment was affirmed in the Exchequer Chamber; M. 32 Geo. 3.